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Submitter Information

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General Comment

I am writing to you as an everyday American college student who majors in graphic design. I am currently a senior and I have worked hard for five years through a pandemic, with an associates degree and soon to be bachelor's degree in May of 2025. I have dedicated my time, money, and effort to develop the skills and knowledge to build my professional portfolio, until recently when my future career is challenged by the recent advances in AI systems made by Big Tech companies like OpenAI (Microsoft), and Google. These companies threaten to destroy thousands of American small businesses and future careers with their recent demand to create special carve outs in copyright law. Imagine spending thousands of dollars and hundreds of hours to learn a craft that is insanely valuable in our modern day and age. Design is found everywhere. Art is found everywhere and it's something that is inherently human. No other animal on this planet takes part in a culture of the arts as in-depth and as creative as we humans do.

AI systems can only be produced by first training on work made by people. My unique work, and the work of hundreds of thousands of other everyday American creators was taken and fed into these AI systems without our consent or any compensation. They ingest our work, reassemble it, and then sell it back to our clients... directly competing with us and cutting us out of the marketplace.

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use".

They seem to believe that anything and everything on the internet (regardless of who owns it) should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate.

If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things?

Want to protect American innovation? Protect American creators. Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

First, the government should ensure that creators and everyday Americans give effective consent, so that we can decide when and where our work is used by AI systems.

Second, the AI Action Plan should encourage a robust licensing marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.

Finally, the AI Action Plan should require transparency from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

I am not anti-technology or anti-AI. I am consistently impressed by the capabilities of these AI systems, and find them incredibly useful for many things. But we should not sacrifice the hard work of hundreds of thousands of Americans and give it away to Big Tech by rewriting copyright law. We have these protections for artists for a reason and to give AI a free pass is completely unjust.

Now all I ask is for sympathy. Do not side with the billionaire companies to profit off of the art of the artist who makes their company what it is today. Google, Adobe, Microsoft, and every single company out there with something as simple as just a logo would be absolutely and completely nowhere as successful as they have become without the work and the effort of the artists and designers. Rather,

side with the designers and artists who are constantly told they'll never make a career out of art, side with those who fit the stereotype of the "starving artists" because frankly the companies worth billions of dollars do not need ways to profit off of work that isn't even theirs. Lastly, I ask for you to put yourself in my shoes. I've spent 5 years, soon to be two degrees, lots of money and lots of debt, all to be prepared to graduate in no more than two months, only for my whole industry to be on the verge of replacement of AI models made by billion dollar corporations. Truly think about it.